

2019 SCC OnLine All 3289

In the High Court of Allahabad

(BEFORE GOVIND MATHUR, C.J. AND SAURABH SHYAM SHAMSHERY, J.)

Veerendra Kumar Jain Petitioner;

v.

State of U.P. and Others Respondents.

Writ - C No. - 281 of 2011

Decided on April 2, 2019

Advocates who appeared in this case :

Counsel for Petitioner:- Rahul Chaudhary

Counsel for Respondent:- C.S.C, Rajesh Tripathi

1. This petition for writ is preferred to have reliefs as follows:—

“i. to issue a writ, order or direction in the nature of certiorari quashing the two bills raised simultaneously for electricity connection no. 068335;

ii. to issue a writ, order or direction in the nature of mandamus directing the respondents to rectify the bills relating to electricity connection no. 068335;

iii. to issue a writ, order or direction in the nature of mandamus restraining the respondents from making any recovery from the petitioner against any illegal demands raised for the present electricity connection bearing electricity connection no. 068335.”

2. At the threshold, it is submitted by learned counsel for the respondent - Electricity Company that as per the Electricity Supply Code, 2005 (hereinafter referred to as “Code, 2005”), the petitioner may raise his grievance before the Consumer Grievance Redressal Forum and Ombudsman under para 7.10.

3. It is brought to our notice that reference of such forum has also been given in accordance with the provisions of para 7.10 in the electricity consumer bill which is available on record at page 32.

4. Having considered the provisions of para 7.10 of the Code, 2005, we deem it appropriate to relegate the petitioner to avail remedy under para 7.10 of the Code, 2005. The petitioner if submits any application to the Consumer Grievance Redressal Forum and Ombudsman prescribed under para 7.10 aforesaid then the same shall be considered on merits within a period of 45 days subsequent thereto.

5. Till disposal of the application, interim order passed by this Court on 06.01.2011 shall remain in currency.

6. With the directions above, the writ petition stands disposed of.

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